

to construct and reconstruct them, and to make assessments therefor on the adjoining lots, and creating a lien therefor, payment to be enforced by proceedings in court, is not in conflict with Const. U. S. Amend. 14, securing to all persons the equal protection of the laws.—*Walston v. Nevin*, 128 U. S. 578, 9 S. Ct. 192, 32 L. Ed. 544, affirming *Nevin v. Rouch*, 86 Ky. 492, 5 S. W. 546.

Where a special assessment to pay for a particular work has been held to be illegal, a subsequent authority given to make a new special assessment to pay for the completed work is not violative of Const. U. S. Amend. art. 14, prohibiting any state denying to any person within its jurisdiction the equal protection of the laws. Judgment, *Cummings v. West Chicago Park Com'rs*, 54 N. E. 941, 181 Ill. 136, affirmed.—*Lombard v. West Chicago Park Com'rs*, 21 S. Ct. 507, 181 U. S. 33, 45 L. Ed. 731.

A state statute under which three-fourths of the cost of paving a city street may be assessed upon abutting property in proportion to foot frontage, such assessment to be a lien thereon, is not obnoxious to the fourteenth amendment to the federal constitution. Judgment, *Kelly v. Chadwick*, 29 So. 295, 104 La. 719, affirmed.—*Chadwick v. Kelly*, 23 S. Ct. 175, 187 U. S. 540, 47 L. Ed. 293.

The equal protection of the laws guaranteed by the federal Constitution is not denied to a railway company by requiring it to stand the entire expense of removing and rebuilding its bridge and culvert, made necessary by the proposed widening and deepening of the channel of a creek by drainage commissioners acting under the authority of Farm Drainage Act, Ill. July 1, 1885, to effect the drainage of low lands. Decree, 72 N. E. 219, 212 Ill. 103, affirmed.—*Chicago, B. & Q. Ry. Co. v. People of State of Illinois*, 26 S. Ct. 341, 200 U. S. 561, 50 L. Ed. 596, 4 Ann. Cas. 1175.

Nonresident owners of lands within the levee district created by Act Ark. Feb. 15, 1893, p. 31, are not denied the equal protection of the laws because section 11 of that act, as amended in Act Ark. April 2, 1895, p. 88, § 1, while requiring personal service of summons upon resident owners or occupants for at least 20 days before rendering a decree of sale for unpaid levee taxes, provides for constructive service by publication upon nonresident owners of only 4 weeks. Decree (1905) 85 S. W. 252, 74 Ark. 174, affirmed.—*Ballard v. Hunter*, 27 S. Ct. 261, 204 U. S. 241, 51 L. Ed. 461.

An owner of property lying directly back of property abutting on a street improvement cannot claim to be denied the equal protection of the laws guaranteed by Const. U. S. Amend. 14, on the theory that the hearing afforded him does not, as in the case of abutting owners, give him an opportunity to be heard as to the amount of the assessment against his property, where the amount of such assessment is the same as the assessment against the abutting property, and measures the contingent liability to which the back-lying property may be subjected if the abutting property, which is made primarily liable, fails to satisfy the assessment. Judgment (1905) 74 N. E. 260, 38 Ind. App. 226, affirmed.—*Cleveland, C. & St. L. Ry. Co. v. Porter*, 28 S. Ct. 647, 210 U. S. 177, 52 L. Ed. 1012.

The equal protection of the law is not denied to the owner of property lying directly back of property abutting on a street improvement by a law creating a taxing district of the property along the line of the improvement and extending back therefrom 150 feet and providing that property 50 or more feet distant from the street and within 150 feet therefrom shall be liable if the abutting 50 feet which are primarily liable prove insufficient to pay the cost of the improvements.—*Id.*

The distinction between resident and non-resident owners of abutting property in Act

May 19, 1896, 29 Stat. 125, c. 206, creating a drainage system for the District of Columbia, in that the coercion of the law as to making connections with a sewer is by criminal punishment in the case of residents, whereas, against nonresident owners, the district does the work in case of their neglect, and assesses the cost against the property as a tax, does not invalidate the statute for discrimination, even if Congress cannot enact discriminating legislation. Judgment (1907) 29 App. D. C. 563, reversed.—*District of Columbia v. Brooke*, 29 S. Ct. 560, 214 U. S. 138, 53 L. Ed. 941.

Lessees of state tidelands are not denied the equal protection of the laws contrary to the fourteenth amendment, by state statutes authorizing the assessment of such leaseholds for local improvements.—*Trimble v. City of Seattle*, 34 S. Ct. 218, 231 U. S. 683, 58 L. Ed. 435, affirming judgment 116 P. 647, 64 Wash. 102.

Municipal ordinance establishing a tax district where boundary line after running on a line not 100 feet back from the street jumped 500 feet, when it encountered an undivided tract, and that on the opposite side of the street was 150 feet or 240 feet away, violates Const. Amend. 14.—*Gast Realty & Investment Co. v. Schneider Granite Co.*, 36 S. Ct. 254, 240 U. S. 55, 60 L. Ed. 523, reversing judgment *Schneider Granite Co. v. Gast Realty & Inv. Co.*, 168 S. W. 687, 259 Mo. 153, and rehearing denied *Gast Realty & Inv. Co. v. Schneider Granite Co.*, 36 S. Ct. 400, 240 U. S. 55, 60 L. Ed. 526.

Equal protection of the laws is not denied owners of property assessed in curative proceedings without opportunity to be heard as to amount of awards to the owners of property condemned.—*St. Louis & Kansas City Land Co. v. Kansas City*, 36 S. Ct. 647, 241 U. S. 419, 60 L. Ed. 1072, affirming judgment *Kansas City v. St. Louis & Kansas City Land Co.*, 169 S. W. 62, 260 Mo. 395.

235. Regulation of use of streets and other highways.

See 10 Cent. Dig. Const. Law, § 683.

Comp. Laws Utah, § 2087, making any one who drives a herd of horses, mules, asses, cattle, sheep, goats, or swine over a public highway constructed on a hillside liable for damages by such animals in destroying the banks, or rolling rocks into the highway, does not deny to such person the equal protection of the laws.—*Jones v. Brim*, 17 S. Ct. 282, 165 U. S. 180, 41 L. Ed. 677.

An ordinance prohibiting the moving of any building upon or across the streets without the written permission of the mayor or president of the city council, or, in their absence, of a councilor, is not a denial of the equal protection of the law.—*Wilson v. Eureka City*, 19 S. Ct. 317, 173 U. S. 32, 43 L. Ed. 603.

The equal protection of the laws is not denied to a stage coach company by a municipal ordinance prohibiting the use of advertising trucks, vans, or wagons in the city streets, because "ordinary business wagons" when "engaged in the usual business or regular work of the owner, and not used merely or mainly for advertising," are expressly permitted to exhibit "business notices," nor because advertising is allowed on the stairs of the elevated railways and on elevated structures.—(1911) *Fifth Ave. Coach Co. v. City of New York*, 31 S. Ct. 709, 221 U. S. 467, 55 L. Ed. 815, affirming decree (1909) 86 N. E. 824, 194 N. Y. 19, 21 L. R. A. (N. S.) 744, 16 A. & E. Ann. Cas. 695, which affirms (1908) 110 N. Y. S. 1037, which affirms (1908) 111 N. Y. S. 759.

237. Regulation of keeping and use of animals.

A municipal ordinance, adopted under legislative authority, forbidding the establishment or maintenance of a dairy or cow stable within